

Sahid Ali v. State of U.P. and Others

Allahabad High Court · Division Bench · 01.03.2023 · WRIT - C No. 39070 of 2022 · **Writ disposed; petitioner relegated to the Executive Engineer under clause 6.5 of the Supply Code, 2005 to raise disconnection and arrears disputes, to be decided in accordance with law after hearing; no opinion on merits.**

HEADNOTE

A consumer sought mandamus to continue supply on a Saubhagya connection after the licensee disconnected it for alleged arrears of Rs. 1,81,843/- on a 1990 connection said to have been suppressed. The Division Bench noted that the counter affidavit did not identify the period of those arrears, found disputed questions of fact, and disposed of the writ with liberty to object before the Executive Engineer under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, to be decided in accordance with law, expressing no opinion on merits.

FACTUAL SUMMARY

Sahid Ali sought a mandamus directing the distribution licensee to continue supply on his Saubhagya Yojana connection (account no. 741805200960). The respondents stated that he already held a 1990 connection (no. 751739578830) with arrears of Rs. 1,81,843/-, had suppressed that fact to obtain the new connection on 28 July 2018, and that supply was disconnected when the dual connection came to light. The counter affidavit did not identify the period of the alleged arrears.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-arrears-alternate-remedy

HOLDING

Where a consumer challenges disconnection of a later connection alleged to have been obtained by suppressing arrears on an earlier connection, and the licensee has not stated the period of those arrears, disputed questions of fact arise. The writ court will not decide the dispute; the consumer is to raise objections before the Executive Engineer under clause 6.5 of the Supply Code, 2005, to be decided in accordance with law after hearing, the Court expressing no opinion on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

Mandamus to continue a Saubhagya supply disconnected for alleged arrears on a suppressed 1990 connection was refused on the writ; the petitioner was sent to a clause 6.5 objection before the Executive Engineer, to be decided in accordance with law. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5

Because the licensee had not identified the period of the Rs. 1,81,843/- arrears said to justify disconnection, the Court treated the matter as a disputed question of fact for the Executive Engineer under clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ARREARS OF RS. 1,81,843/- ON CONNECTION NO. 751739578830 JUSTIFIED DISCONNECTION OF THE SAUBHAGYA CONNECTION, AND FOR WHICH PERIOD THOSE ARREARS AROSE
Court expressly declined to express any opinion on merits. ¶ 1

NOT DECIDED — APPLICATION OF CLAUSES 4.35, 4.36, 4.38, 4.39 AND 6.15 OF THE SUPPLY CODE, 2005 TO THE DISCONNECTION AND RECOVERY

Provisions were recited but not applied. ¶ 1

